

No. 25-13631

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

CITADEL SECURITIES LLC,
Petitioner,

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,
Respondent,

INVESTORS EXCHANGE LLC,
Intervenor.

On Petition for Review of a Final Order of the
Securities and Exchange Commission

TIME-SENSITIVE MOTION TO RESCHEDULE ORAL ARGUMENT

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*Attorneys for Intervenor
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Intervenor Investors Exchange LLC (“IEX”) respectfully moves, pursuant to Federal Rule of Appellate Procedure 34(b) and Eleventh Circuit Rule 34-4(g), to reschedule the oral argument in the above-captioned case, which is tentatively calendared for the week of April 27, 2026. Good cause exists for the requested rescheduling. Respondent Securities and Exchange Commission does not oppose this request, while Petitioner Citadel Securities LLC has declined to take a position until after the filing of this motion.

In support of the motion, IEX states as follows:

1. On November 10, 2025, Citadel, the SEC, and IEX jointly moved the Court to enter a stipulated briefing schedule and requested that the Court issue a decision in this case by June 15, 2026. Dkt. 17. On November 17, 2025, the Court granted the motion and directed the Clerk of the Court to place this case on the next available oral argument calendar with a vacancy. Dkt. 21. Briefing is scheduled to be completed by February 20, 2026.

2. On January 7, 2026, this Court issued a notice tentatively calendaring the case for oral argument the week of April 27, 2026. Dkt. 28.

3. IEX’s lead counsel, William Savitt, is also lead counsel for the OpenAI Defendants in *Musk v. Altman*, No. 24-cv-4722 (N.D. Cal.), which is scheduled for trial from April 27 to May 22, 2026.

4. The trial schedule in the *Musk* case will make it impossible for Mr.

Savitt to effectively prepare for and present oral argument in this case the week of April 27, 2026—the first week of the multi-week *Musk* trial.

5. Good cause therefore exists for rescheduling the oral argument in this case to ensure counsel can adequately prepare for and present oral argument to this Court.

6. In light of the parties' prior joint request that the Court decide this case by June 15, 2026, IEX requests that the Court reschedule the oral argument to an earlier date rather than continue the argument to a later date.

7. Counsel for IEX has conferred with counsel for the SEC and Citadel regarding available dates for a potential oral argument in March and April 2026. Counsel for all three parties are available March 11, March 30, and April 14 to 17, 2026.

8. Counsel for the SEC consents to the request to reschedule.

9. Counsel for Citadel has advised that they are not prepared to take a position on this motion until after the motion is filed.

10. In refusing to consent to this request prior to the filing of this motion, counsel for Citadel observed that the order setting the trial schedule in *Musk* was entered on January 13, 2026, shortly after this Court's tentative calendaring notice. In fact, counsel for IEX was notified of the date of the potential trial during a conference on January 7, 2026; counsel learned afterward of this Court's tentative

calendaring notice and was unable to arrange a schedule that avoided the potential conflict.

11. Counsel for IEX has worked diligently to attempt to resolve the scheduling conflict, exploring ways Mr. Savitt might still present oral argument in this Court the week of April 27 before ultimately determining that it would be impossible. Counsel for IEX also contacted the Clerk's office, which initially indicated the possibility of having the oral argument calendared for a different week before later advising that it was not possible without a motion. Finally, counsel for IEX conferred with counsel for the SEC and Citadel regarding the rescheduling request made in this motion.

12. Accordingly, IEX respectfully requests that oral argument in this case be rescheduled to one of the following dates: March 11, March 30, April 14, April 15, April 16, or April 17, 2026.

Dated: February 5, 2026

Respectfully submitted,

/s/ William Savitt
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CERTIFICATE OF COMPLIANCE

I certify that this Motion complies with (1) the type-volume limitations of Federal Rule of Appellate Procedure 27(d)(2)(A) because it contains 617 words, excluding any parts exempted by Rule 27(a)(2)(B); and (2) the typeface and type-style requirements of Rule 27(d)(1)(E) because it has been prepared in Microsoft Word in a proportionally spaced typeface using 14-point Times New Roman font.

Dated: February 5, 2026

/s/ William Savitt

William Savitt

CERTIFICATE OF SERVICE

I certify that on February 5, 2026, the foregoing Motion was electronically filed with the United States Court of Appeals for the Eleventh Circuit using the CM/ECF system. I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

Dated: February 5, 2026

/s/ William Savitt

William Savitt